

[doc. web n. 10100956]

Provision of November 27, 2024

Register of provisions

n. 730 of November 27, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting today, attended by

Prof. Pasquale Stanzione, president, Dr.

Agostino Ghiglia and Attorney Guido Scorza, members, and

Secretary General Fabio Mattei;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament

and of the Council of April 27, 2016, concerning

the protection of natural persons with regard to

the processing of personal data, as well as the free

movement of such data and repealing Directive

95/46/EC, "General Data Protection Regulation" (hereinafter, "Regulation");

HAVING REGARD TO Legislative Decree No. 196 of June 30, 2003, containing

"Code regarding the protection of personal data,

containing provisions for the adaptation

of the national legal system to Regulation (EU)

2016/679 of the European Parliament and of the Council, of

April 27, 2016, concerning the protection of

natural persons with regard to the processing of personal data,

as well as the free movement of such data and repealing Directive 95/46/EC (hereinafter

"Code");

HAVING REGARD TO Regulation No. 1/2019 concerning

internal procedures with external relevance,

aimed at carrying out the tasks and

exercising the powers entrusted to the Guarantor for the

protection of personal data, approved by

Resolution No. 98 of April 4, 2019, published in

G.U. No. 106 of May 8, 2019 and on www.gdpd.it, doc.

web n. 9107633 (hereinafter "Guarantor Regulation

No. 1/2019");

HAVING REGARD TO the documentation on file;

HAVING REGARD TO the observations made by the

Secretary General pursuant to Article 15 of the Guarantor Regulation

No. 1/2000 on the organization and

functioning of the office of the Guarantor for the

protection of personal data, doc. web n. 1098801;

REPORTING Attorney Guido Scorza;

PREMISED

1. Introduction.

With a complaint submitted pursuant to Article 77 of

the Regulation, XX, a radiologist at the Provincial Health Authority of Enna (hereinafter "Health Authority"), through

her lawyer, represented that "the resolutions n. XX and n. XX of XX and related attachments (in addition to further attached documentation) were published

'to the Online Notice Board of the ASP of Enna on XX and until

XX', concerning, respectively, 'XX' and 'XX', containing personal data of the complainant and of dozens of other employees.

In particular, it was complained that in the documentation attached to resolutions n. XX and XX of XX, 'critical issues' were highlighted, consisting of 'syndical leaves possibly requested' by the complainant and her failure to participate in night and holiday day shifts, as she is 'subject to specific functional limitations'.

Among the attached documentation, in particular, there was 'the Work Plan for the month of August XX [...] whose legend indicates the letter M=sickness of XX, in the table marked by hand next to each day of absence due to illness, as well as for the month of July XX with indication of the days of leave of the same.'

2. The investigative activity.

In response to a request for information from this Authority (note prot. n. XX of XX), the Health Authority, with note prot. n. XX of XX, declared, in particular, that:

- "Resolution n. XX of XX including attachments A-B-C and D was published in copy on the electronic notice board of the Provincial Health Authority of Enna on XX in adherence to the principle of transparency regarding the actions of the P.A.;

- "the principle of 'transparency' is one of the cornerstone principles of public administration action. In the legislative framework, transparency is defined as: 'total accessibility of data and documents held by public administrations, in order to protect the rights of citizens, promote the participation of interested parties in administrative activities, and encourage widespread forms of control over the pursuit of institutional functions and the use of public resources';

- "this Resolution was available on the company website until the date of XX, when it was decided to proceed with its removal following the report from the Head of the Alpi Working Group";

- "this Company has not disclosed sensitive personal data of XX [...] among the attachments to the resolution we find the requests for authorizations for medical shifts through the institute of additional services, by the director of the UOC of Radiology of the ASP of Enna, who in formulating the request presents 'justifications' aimed at outlining the evident shortage of human resources due to a series of objective reasons, among which are simply cited: the absences due to illness of the doctor and the syndical leaves that she benefits from without any

reference to specific pathologies or to specific union acronyms";

- "these requests were attached to the Resolution to justify the recourse to the authorized additional services for the doctors who carried out the shifts, with the cost being entirely borne by the company budget. This in compliance with the obligation of justification of administrative acts pursuant to Article 3 of Law No. 241/1990, which imposes on the P.A. the analytical exposition of the factual presuppositions and the legal reasons underlying the issuance of the administrative act." with regard to individual compensation without a valid legal basis).

4.2 The dissemination of data on individual compensations

In reiterating that the personal data protection system requires a suitable legal basis for any processing operation (art. 4, point 2 of the Regulation), including dissemination (art. 2-ter, paragraph 4, letter b) of the Code), it is noted that the Authority has long provided guidance on the prerequisites (and the occurrence of these, as well as the specific modalities) for the lawful publication, including online, of acts and documents containing personal data related to workers (see paragraph 6.3 of the "Guidelines on the processing of personal data of workers for the purpose of managing the employment relationship in the public sector" of June 14, 2007, doc. web n. 1417809, where it is stated that it is not lawful to disseminate personal information regarding individual compensations without a valid legal basis).

5. Conclusion

In light of the above, it is evident that the publication of the aforementioned resolutions and related attachments on the institutional website of the Azienda Sanitaria constitutes a violation of the applicable data protection regulations, particularly concerning the dissemination of personal data without a valid legal basis. The Authority will therefore proceed with the adoption of the necessary measures to ensure compliance with the provisions of the Regulation and the Code, as well as to protect the rights of the individuals involved.

The Azienda Sanitaria is hereby informed that it has the right to appeal against this decision in accordance with the provisions of the applicable law.

This document is issued in accordance with the applicable legal framework and is intended for the parties involved.

Date: XX

Authority: [Name of the Authority]

Signature: [Signature]

Seal: [Seal of the Authority]

referring to individual workers through their publication in communications and internal documents or acts and circulars intended for the collective of workers (see also the provision of May 15, 2014, no. 243, web doc no. 3134436 "Guidelines on the processing of personal data, including in acts and administrative documents, carried out for the purposes of publicity and transparency on the web by public entities and other obligated bodies").

With regard, therefore, to the reference to the transparency regulations invoked by the Health Authority as a premise that would justify the dissemination of the personal data in question, it is observed, preliminarily, that the publication of the aforementioned resolutions took place in the "Albo Pretorio" section of the Health Authority's institutional website and not, instead, in the "Transparent Administration" section, thus rendering this regulatory reference irrelevant to the facts subject to complaint. Nor does any of the provisions of Legislative Decree of March 14, 2013, no. 33 impose the

publication of such sensitive information concerning the individual employment relationship.

In the specific case, the online publication was initiated, in the first place, of data relating to the amounts paid by the Health Authority for additional services performed by individual employees. In this regard, the same transparency regulations, in order to provide public evidence of the levels of rewards in the distribution of bonuses and incentives to staff, require administrations to publish only the aggregated values of the amounts paid and not, as occurred in this case, the detailed breakdown of the additional compensation received individually by employees (see Article 20 of Legislative Decree 33 of 2013; see also provision no. 287 of July 6, 2023, web doc 9920145).

The specific regulations regarding the publicity of administrative acts in the “Telematic Albo Pretorio of the Entity” (see Article 124 of Legislative Decree no. 267 of August 18, 2000 - Consolidated Law on the laws governing local authorities; see also Article 32, paragraph 1, of Law no. 69 of June 18, 2009) - which governs the publication for 15 days on the Albo Pretorio of the Entity's resolutions - merely provides that the obligations of publication of acts and administrative provisions having the effect of legal publicity are considered fulfilled with the publication on their own websites by the administrations and public entities obliged, but does not provide anything regarding the publication of personal data relating to the specific employment relationship.

The Guarantor has clarified on numerous occasions that even the presence of a specific publicity regime cannot entail any automaticity regarding the online dissemination of personal data and information, nor a derogation from the principles regarding the protection of personal data (see, among many, most recently provision of July 4, 2024, no. 404, web doc 10050145 and previous ones cited therein).

In numerous decisions regarding the obligations arising from Article 124 of Legislative Decree 267/2000, in fact, the Guarantor has reiterated that all limits provided by the principles of personal data protection also apply to publications on the online Albo Pretorio of acts or resolutions, having regard primarily to the existence of suitable lawful bases for the online dissemination of the personal data contained therein, even before considering any possible minimization of the same. This is also confirmed by the personal data protection system contained in the Regulation, under which it is provided that the data controller must implement “appropriate technical and organizational measures to ensure that, by default, only personal data necessary for each specific purpose of the processing are processed” and must be “able to demonstrate” – in light of the principle of “accountability” – that they have done so (Articles 5, paragraph 2; 24 and 25, paragraph 2, Regulation). Therefore, where the online publication of documents involves the processing of personal data and thus their dissemination, the needs for publicity pursued must be appropriately balanced with the rights and fundamental freedoms, as well as the dignity of the data subject, with particular reference to privacy, personal identity, and the right to the protection of personal data, prioritizing the existence of a suitable legal basis for the dissemination of the data (see, most recently, provisions no. 366 of November 10, 2022, web doc no. 9834986 and no. 299, of September 15, 2022, web doc no. 9815665).

Nor can the necessity to publish the aforementioned resolutions be invoked on the grounds of the need to provide adequate reasoning for the adopted measures, since the general obligation of motivation that permeates administrative action even in the drafting phase of acts (Article 3, Law 241/1990) cannot be invoked to justify the online publication of the same in full version, given that each administrative act adopted, remaining with the administration that formed it, continues to be accessible, by qualified subjects, in the ways and limits provided by law (on this point see the constant orientation of the Guarantor, precisely with regard to administrative documents formed within proceedings involving also the personnel of the administration, see provision no. 84 of March 23, 2023, web doc 9888113, and provisions cited therein) and remaining, in any case, subject to the other forms of accessibility of administrative acts provided by the legal system (Articles 22 and following, Law of August 7, 1990, no. 241; Presidential Decree of April 12, 2006, no. 184; Articles 6, 9, 10, and 86 Regulation).

4.2. The dissemination of health-related data

In the documentation subject to dissemination, there were...

of consideration, non possono ritenersi sufficienti a giustificare la diffusione dei dati personali della reclamante e degli altri interessati, in quanto non è stata fornita una base giuridica adeguata per tale trattamento. Pertanto, si conclude che la diffusione di tali dati è avvenuta in violazione delle disposizioni normative sopra citate, con conseguenti responsabilità per il titolare del trattamento.

In conclusione, si raccomanda di adottare misure correttive per garantire la conformità al Regolamento e al Codice, evitando future violazioni e tutelando adeguatamente i diritti dei soggetti interessati.

****Considerations****

do not allow for overcoming the objections notified by the Office with the initiation of the proceedings and are insufficient to allow for the closure of the present proceedings pursuant to the combined provisions of Articles 11 and 14 of the Garante Regulation No. 1/2019. Therefore, the preliminary assessments of the Office are confirmed, and the illegality of the processing of personal data carried out by the Health Authority is noted for having disseminated online the personal data of the complainant and numerous other interested parties by publishing on its institutional website the resolutions No. XX and XX of XX, related attachments, and further documentation containing personal data also relating to special categories of the complainant and certain other employees, including data related to health and information concerning the exercise of the complainant's trade union rights, in the absence of an appropriate legal basis, in violation of Articles 5, 6, and 9 of the Regulation and 2-ter and 2-septies, paragraph 8 of the Code.

Considering that the violation of the aforementioned provisions occurred as a result of a single conduct, Article 83, paragraph 3, of the Regulation applies, according to which the total amount of the administrative pecuniary sanction does not exceed the amount specified for the most serious violation. Given that, in this case, the violations are all subject to the sanction provided for by Article 83, paragraph 5, of the Regulation, as also referred to by Article 166, paragraph 2, of the Code, the total amount of the sanction is to be quantified up to €20,000,000.

In this context, considering, in any case, that the conduct has exhausted its effects, since the Health Authority has removed the aforementioned resolutions from its institutional website, the prerequisites for the adoption of further corrective measures pursuant to Article 58, paragraph 2, of the Regulation do not exist.

****6. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (Articles 58, paragraph 2, letter i and 83 of the Regulation; Article 166, paragraph 7, of the Code).****

The Garante, pursuant to Articles 58, paragraph 2, letter i) and 83 of the Regulation as well as Article 166 of the Code, has the power to "impose an administrative pecuniary sanction pursuant to Article 83, in addition to the [other] [corrective] measures referred to in this paragraph, or in lieu of such measures, depending on the circumstances of each individual case" and, in this context, "the Board [of the Garante] adopts the injunction order, which also provides for the application of the accessory administrative sanction of its publication, in whole or in part, on the Garante's website pursuant to Article 166, paragraph 7, of the Code" (Article 16, paragraph 1, of the Garante Regulation No. 1/2019). In this regard, taking into account Article 83, paragraph 3, of the Regulation, in this case, the violation of the cited provisions is subject to the application of the administrative pecuniary sanction provided for by Article 83, paragraph 5, of the Regulation.

The aforementioned administrative pecuniary sanction imposed, depending on the circumstances of each individual case, must be determined in amount taking into due account the elements provided for by Article 83, paragraph 2, of the Regulation.

Considering that:

- with specific regard to the nature, severity, and duration of the violation, it should be noted that the dissemination of data relating to the complainant and numerous other interested parties occurred on the institutional website of the Health Authority without indexing on search engines (cf. Article 83, paragraph 2, letter a), of the Regulation);
- with specific regard to the subjective profile of the violation, the Health Authority acted under the mistaken belief of fulfilling a legal obligation despite the numerous indications provided by the Garante

to all public entities since 2014 with the aforementioned guidelines (Article 83, paragraph 2, letter b), of the Regulation);

- regarding the categories of personal data, data belonging to special categories such as health information concerning the complainant and certain colleagues were disseminated, including detailed indications regarding specific reasons for absence and information related to the exercise of the complainant's trade union rights (Article 83, paragraph 2, letter g) of the Regulation).

In light of this specific circumstance, it is believed that, in this case, the level of severity of the violation committed by the data controller is medium (cf. European Data Protection Board, "Guidelines 4/2022 on the calculation of administrative pecuniary sanctions pursuant to the GDPR" of May 24, 2023, point 60).

That said, the following aggravating and mitigating circumstances must be considered:

- there are some previous violations of the same provisions of the Regulation and the Code, even in the same context (cf. Article 83, paragraph 2, letter e), of the Regulation);
- the Health Authority has offered good cooperation with the Authority, stating that it removed, on XX, resolutions No. XX and XX of XX (Article 83, paragraph 2, letter f), of the Regulation).

By reason of the aforementioned elements, assessed in their entirety, it is deemed appropriate to determine the amount of the pecuniary sanction at €20,000 (twenty thousand) for the violation of Articles 5, 6, and 9 of the Regulation, as well as 2-ter and 2-septies, paragraph 8 of the Code, as an administrative pecuniary sanction deemed, pursuant to Article 83, paragraph 1, of the Regulation, effective, proportionate, and deterrent.

In this context, it is also believed that, pursuant to Article 166, paragraph 7, of the Code and Article 16, **Pursuant to comma 1 of the Regulation of the Guarantor no. 1/2019, it is necessary to proceed with the publication of this chapter containing the injunction order on the website of the Guarantor.**

This is in consideration of the sensitive information that has been disseminated through the website of the Health Authority regarding matters related to the employment relationship of the complainant, which has also led to the dissemination of personal data relating to special categories, as well as the Health Authority's failure to respond to the complainant's request for the deletion of their personal data.

It is noted, finally, that the conditions referred to in Article 17 of Regulation no. 1/2019 are met.

****ALL OF THE ABOVE CONSIDERED, THE GUARANTOR****

pursuant to Articles 57, paragraph 1, letter f) and 83 of the Regulation, finds the unlawfulness of the processing carried out by the Provincial Health Authority of Enna as stated in the reasoning, for the violation of Articles 5, 6, and 9 of the Regulation, as well as Articles 2-ter and 2-septies, comma 8 of the Code;

****ORDERS****

pursuant to Article 58, paragraph 2, letter i) of the Regulation, the Provincial Health Authority of Enna, represented by the legal representative pro tempore, with registered office at Viale Armando Diaz, 7 - 94100 Enna (EN), C.F. 01151150867, to pay the sum of euro 20,000 (twenty thousand) as an administrative pecuniary sanction for the violations indicated in this provision;

****INSTRUCTS****

therefore the Provincial Health Authority of Enna to pay the aforementioned sum of euro 20,000 (twenty thousand) according to the methods indicated in the annex, within thirty days from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to Article 27 of Law no. 689/1981. It is represented that pursuant to Article 166, paragraph 8 of the Code, the offender retains the option to settle the dispute by paying - always according to the methods indicated in the annex - an amount equal to half of the imposed sanction within the term referred to in Article 10, paragraph 3, of Legislative Decree no. 150 of September 1, 2011, provided for the submission of the appeal as indicated below;

****DISPOSES****

- a) pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Regulation of the Guarantor no. 1/2019, the publication of the injunction order on the website of the Guarantor;
- b) pursuant to Article 154-bis, paragraph 3 of the Code and Article 37 of the Regulation of the Guarantor no. 1/2019, the publication of this provision on the website of the Authority;
- c) pursuant to Article 17 of the Regulation of the Guarantor no. 1/2019, the annotation of the violations and the measures adopted in accordance with Article 58, paragraph 2 of the Regulation, in the internal register of the Authority provided for by Article 57, paragraph 1, letter u) of the Regulation.

Pursuant to Articles 78 of the Regulation, 152 of the Code, and 10 of Legislative Decree no. 150/2011, it is possible to appeal against this provision before the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, November 27, 2024

****THE PRESIDENT****

Stanzione

****THE REPORTER****

Scorza

****THE SECRETARY GENERAL ****

Mattei